

PO Number:___90258417

APPLE COMPUTER, INC.
Cover Sheet to
Contract for Consulting Services

This section to be filled out by the Requestor

Name of Consultant: Macaldia S.R.L., Arevalo 2268, 1B, 1425, Buenos Aires, Argentina

Phone No.:

Requestor's Name/Extension No.: Edwin Estrada

Total Amount of Contract: \$40,000.00 USD

Start Date: April 1, 2007

Payment Schedule: see attached

Finish Date: September 29, 2007

Business Purpose: ALAC SE services

1. _____

Manager's Signature/Date*

* This Agreement must be approved in accordance with the signing levels set by the Authorization of Expenditures Policy. **The actual contract must be signed by a Director.**

Insurance Questionnaire—To be filled out and signed by the Requestor.		Yes	No
1.	Will Consultant be using subcontractors on this contract?	☐	☒
2.	Does Consultant have more than five (5) employees?	☐	☒
3.	Will Consultant be producing or creating videos outside your premises?	☐	☒
4.	Will Consultant be giving legal, psychological or medical advice?	☐	☒
5.	Will Consultant be directing any athletic event or program?	☐	☒
6.	Does Consultant need a construction licence to perform the work?	☐	☒
7.	Will Consultant be traveling on business for Apple?	☒	☐
8.	Will Consultant be using aircraft, boats or other unusual vehicles?	☐	☒
9.	Does this project involve handling any toxic or hazardous materials?	☐	☒

If you, the Requestor, have checked all boxes NO, sign here:

and you may cross out paragraph 7a of the Contract for Consulting Services. Apple recommends that every Consultant carry adequate health, auto, workers compensation, and liability insurance. **If any of the above boxes are checked YES, paragraph 7a cannot be deleted and the Contractor must carry insurance. PROOF OF INSURANCE IS REQUIRED BEFORE CONTRACTOR WILL BE PAID.**

2. _____

Legal Signature/Date

INSTRUCTIONS

3. _____

Finance Signature/Date

- The requestor and his/her manager (i.e., Apple employees) must fill out the contract; not the consultant.
- This contract will not be approved unless all sections have been completed properly.
- A consultant is not allowed to begin work at Apple until he/she receives a copy of both the approved signed contract from the Legal Department and a Purchase Order number, and has provided a certificate of insurance.
- The Contractor must submit invoices that match the payment schedule, detailed on page 2 of cover sheet.
- Apple generally pays Consultants' invoices 1 day after they are received, and only after the work has been accepted.

RETURN FULLY COMPLETE COPY TO APPLE LEGAL DEPARTMENT

Apple Computer, Inc.
Contract For Consulting Services

Name of Consultant: Macaldia S.R.L. ("Consultant") Date: _____

Apple Computer, Inc. ("Apple") and Consultant agree as follows:

1. Services and Fees: The Description of Work, which is Exhibit A to this contract, describes the services that Consultant will perform and the fees which Apple will pay in return. Consultant is an independent contractor, not an employee of Apple. No employment relationship is created by this Contract for Consulting Services.

2. Term: Consultant will begin work on the date written above and, unless terminated sooner, the contract will end when the services are completed.

3. Acceptance of Deliverables: Apple will tell Consultant in writing within 5 days of receiving a deliverable whether it accepts or rejects that deliverable. Apple may reject any deliverable which does not comply with the Description of Work and/or with Apple's standards. If Apple fails to notify Consultant within the specified time, Apple will accept the deliverable. If Apple rejects it, Apple may either terminate the contract pursuant to paragraph 5(a), or it may allow Consultant an opportunity to revise the deliverable to render it acceptable to Apple.

4. Reports: At least once a month, Consultant will report to Apple on the status of the work. On reasonable notice, Apple may inspect Consultant's work in progress and receive copies of it.

5. Termination:

(a) If any deliverable is rejected by Apple or is not delivered by its due date, then Apple may terminate this contract immediately by giving written notice to Consultant and will not owe any amount for deliverables which have not been accepted.

(b) Apple may terminate this contract immediately if Consultant or any of its employees or agents breach the confidentiality provisions or the indemnity provisions.

(c) Apple may terminate the contract without any reason by giving 14 days written notice to Consultant. If Apple terminates for convenience, it will pay Consultant for all accepted milestones and a prorated amount for partially completed deliverables.

6. Relationship of Parties:

_____(a) Consultant, as used in this contract, means the person or entity that signs this contract and all its employees and agents.

(b) Consultant shall retain independent professional status throughout this contract and shall use its own discretion in performing the tasks assigned.

(c) Consultant

(____) has previously been an Apple employee.

(X) has never been an Apple employee.
(If Consultant was previously employed by Apple, the Requestor must furnish the name of Consultant's last supervisor at Apple and a brief explanation of the reasons for termination.)

(d) Consultant is not an Apple employee and is ineligible for any Apple employee benefits.

(e) Consultant will report as income all compensation received pursuant to this contract and will pay all applicable taxes. Apple will not make deductions from its fees to Consultant for taxes, insurance, bonds or any other subscription of any kind.

7. Insurance: Apple recommends that every Consultant carry adequate health, auto, workers compensation, and liability insurance.

~~(a) Unless expressly waived in writing, Consultant agrees to carry the following minimum insurance:-~~

~~(1) Comprehensive General Liability, including Products/Completed Operations, with limits not less than \$500,000/\$500,000 bodily injury and \$500,000 property damage or \$500,000 combined single limit;-~~

~~(2) Umbrella Liability, including Products/Completed Operations, with limits not less than \$1,000,000 each occurrence;-~~

~~(3) Auto Liability, at least \$500,000 for each accident [bodily injury and property damage combined];-~~

~~Before beginning work under this contract, Consultant will deliver to Apple's Legal Department (7495 Birchmount Road, Markham, Ontario, L3R 5G2) a certificate of insurance which shows the coverages for Comprehensive General Liability, Umbrella Liability, and Auto Liability, which names Apple as an additional insured as its interests may appear as regards this contract, and which provides a 30 day notice period for cancellation or reduction in coverage or limits.~~

(b) If the above paragraph 7a has been crossed out and initialled by both parties, then Consultant agrees to carry such adequate health, auto, workers compensation, and liability insurance as is required or common practice in their trade or business.

8. Indemnification: Consultant agrees to be responsible for his/her/its own actions. Consultant agrees to indemnify, hold harmless and, upon Apple's request, defend Apple and its employees and agents from and against all claims and losses of any type, including reasonable lawyers' fees, in connection with, in whole or in part:

(a) Any negligent act, omission, or willful misconduct of Consultant in the performance of this contract.

(b) Consultant's failure to comply with federal, state or local law.

9. Confidentiality: Consultant agrees not to disclose any Apple Confidential Information (as defined below) and to take all reasonable precautions to prevent its unauthorized dissemination, both during and after the contract. Without limiting the scope of this duty, Consultant agrees to limit its internal distribution of Apple Confidential Information to its employees and agents who have a need to know, and to take steps to ensure that the dissemination is so limited. Consultant agrees not to use any

Apple Confidential Information for its own benefit or for the benefit of anyone other than Apple. Without limiting the scope of this duty, Consultant agrees not to design or manufacture any products which incorporate any Apple Confidential Information.

Apple Confidential Information means information relating to the research, development, products, methods of manufacture, trade secrets, business plans, customers, finances, and personnel data related to the business or affairs of Apple. Apple Confidential Information does not include any information (a) which Consultant knew before Apple disclosed it to Consultant; (b) which has become publicly known through no wrongful act of Consultant; or (c) which Consultant developed independently, as evidenced by appropriate documentation.

All Apple Confidential Information remains the property of Apple and no licence or other rights in the Apple Confidential Information are granted hereby. All information is provided "AS IS" and without any warranty, express, implied, or otherwise, regarding its accuracy or performance. Further, Consultant agrees to return all Apple Confidential Information, including but not limited to all computer programs, documentation, notes, plans, drawings, and copies thereof, to Apple on Apple's written request.

10. Apple Will Own the Work Product: All work product created by Consultant under this contract is "work for hire" and is the property of Apple. Consultant assigns to Apple all right, title and interest in and to the work product. Work product means everything that is produced by Consultant in the course of this contract, including, without limitation, notes, reports, documentation, drawings, computer programs (source code, object code and listings), customer lists, inventions, creations, works, devices, masks, mask works, models, work-in-progress and deliverables. Consultant expressly waives any claim to moral rights over any work product created by Consultant under this contract, and Consultant shall ensure that any agent or employee of Consultant shall have waived all moral rights over any work product created under this contract.

During and after this contract, Consultant will assist Apple in every reasonable way, at Apple's expense, to secure, maintain and defend for Apple's benefit all copyrights, patent rights, mask work rights, trade secret rights and other proprietary rights in and to the work product.

11. Licence to Use Consultant's Related Rights: To the extent that Consultant has property rights which are incorporated in or necessary to the use of the work product of this contract (collectively, "Consultant's Related Rights"), Consultant grants Apple, and its subsidiaries and affiliates, a royalty-free, irrevocable, worldwide, non-exclusive licence to use, disclose, reproduce, modify, licence and distribute Consultant's Related Rights. Consultant will indemnify, hold harmless and, at Apple's request, defend Apple, its subsidiaries and affiliates from and against all claims, liabilities, damages, losses and expenses including, but not limited to, reasonable lawyers' fees and costs of suit, arising out of or in connection with all claims that the use or disclosure of Consultant's Related Rights violates any third party's rights.

12. No Conflict: Consultant represents and warrants that its performance of this contract will not conflict with any other contract to which Consultant is bound, and while working on this contract, Consultant will not engage in any such consulting services or enter into any agreement in conflict with this contract. At no time during the past twelve months has Consultant been an employee of any federal, provincial or local government entity which has been substantially involved in the procurement of Apple products for such entity.

13. Consultant's Employees and Agents:

(a) Consultant will require each of its employees and agents who work under this contract or who have access to Apple Confidential Information to sign Apple's "Letter of Agreement for Consultant's Employees and Agents".

(b) Consultant will require each of its employees and agents who work under this contract to follow Apple's work rules while on Apple premises.

14. Miscellaneous:

(a) *Assignment.* Neither party may assign or delegate its rights or obligations under this contract without the other's written consent.

(b) *Equitable Relief.* Any breach of the confidentiality provisions of this contract by Consultant will result in irreparable harm to Apple. Consultant therefore agrees that Apple shall have the right to an injunction or other equitable relief to enforce this contract and any of its provisions, without prejudice to any other rights and remedies that Apple may have.

(c) *Legal Fees.* If any legal action is necessary to enforce this contract, the prevailing party shall be entitled to reasonable lawyers' fees and expenses in addition to any other allowable relief.

(d) *Governing Law; Severability.* California law shall govern and enforce this contract. Arbitration between the parties shall take place in Santa Clara County, California; both parties waive any objection to personal jurisdiction or venue in any forum located in that state. If any provision of this contract is found by a court of competent jurisdiction to be unenforceable for any reason, the remainder of this contract shall continue in full force and effect.

(e) *Arbitration.* At the option of either party, any dispute arising from or respecting this Contract shall be decided by arbitration. At the request of either party, the proceedings will be conducted in secrecy.

(f) *Survival of Terms.* The provisions of paragraphs 6, 8, 9, 10, 11 and 14 hereof shall survive termination of this contract.

(g) *Complete Understanding; Modification.* This contract and the attached exhibits constitute the full and complete understanding and agreement of the parties relating to the subject matter hereof and supersede all prior understandings and agreements relating to such subject matter. Any waiver, modification, or amendment of any provision of this contract shall be effective only if in writing and signed by the parties. The provisions of this contract shall prevail over any conflicting provisions in a purchase order, acceptance notice or other document.

(h) *Agreement in English.* The parties hereto confirm that they have requested that this Agreement and all related documents be drafted in English. Any translation of

this agreement is done for convenience only, and in the event of a dispute the English version shall govern.

Apple Computer, Inc.

Macaldia S.R.L.

By: _____
signature
(_____)
print name

By: _____
signature
(_____)
print name

Title: _____

Title: _____

APPLE EMPLOYEES:

Return the signed original to the Apple Legal Department

DESCRIPTION OF WORK
EXHIBIT A

To contract for Consulting Services between Apple Computer, Inc. and Macaldia S.R.L. (“Consultant”)

1. Services to be Provided: Consultant shall render such services as may be necessary to complete the following project in a professional manner:

Description of work to be done:

See Attached Exhibit A-1

(You may attach consultant's proposal and incorporate it by reference, e.g. "see letter dated mo/day/yr from Consultant to Apple, copy attached.")

Percentage of time per week anticipated to be spent on Apple premises: 5%

2. Fee Schedule: List here the description, schedule and reimbursement for each phase of the project. Use additional sheets if necessary.

See attached Exhibit A-2

Total value of contract: \$ Not to exceed 40,000.00 USD
Apple generally pays consultants 1 day after Apple receives their invoice for completed work.

3. Expenses: The above fees constitute Consultant's remuneration for the services under this contract. Consultant may submit reasonable travel and other expenses to Apple for reimbursement by Apple in accordance with Apple's expense guidelines. If a change in the scope of the work results in a material increase or decrease in the cost or time for completion of the services, the fees and schedule may upon the mutual written agreement of the parties be renegotiated.

4. Equipment: Consultant will supply all its own equipment for this contract, except for the following equipment which will be loaned to Consultant by Apple for the duration of this contract:

Equipment Type	Serial No.
_____	_____
_____	_____
_____	_____

No licence or other right is hereby granted in or to this equipment, except the right to use it in performing the contract services. Consultant agrees to return the equipment in good

condition to Apple promptly after termination of the contract and if it fails to do so will pay Apple the full manufacturer's suggested retail price for the equipment.

Apple Computer, Inc.

By: _____
signature
(_____)
print name

Title: _____

Consultant

By: _____
signature
(_____)
print name

Title: _____

Exhibit A-1

Description of Work

Duties:

Main Roles and Responsibilities are:

- Processes and tracks Argentina specific product certifications (IRAM).
- Assist with importer of record issues.
- Assist WWTC group with the set-up functions of a "Training Programs Specialist" (TPS) for ALAC and transition duties when TPS position is filled.
- Assist with the kick-off of the Apple Consultant Network (ACN) for ALAC.
- SE Consultant (as needed)

Exhibit A-2 Payment Schedule

- Consultant shall remit invoices and any expense receipts to Apple on a monthly basis, within 15 days of the end of the prior month.
- Apple will remit payment to Consultant as instructed by Consultant. Consultant remains responsible for all employment income or business taxes associated with such payment.